

24VECV03785 24VECV03785

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV03785 Hearing Date: August 6, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Ran Ladowitz,

Plaintiff,

v.

Volkswagen Group of America, Inc.

Defendant.

Case Number Department

24VECV03785 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant request for attorneys' fees in the reduced sum of \$15,870.00 (2) Grant request for costs in the sum of \$736.06.

I.

BACKGROUND

On or about May 24, 2023, Plaintiff Ran Ladowitz ("Plaintiff") purchased a 2023 Audi Q7 (the "Vehicle"). (Complaint ¶ 6.) The Vehicle was defective. (Complaint ¶ 7.)

On August 9, 2024, Plaintiff filed a complaint against Defendants Volkswagen Group of America, Inc. ("Defendant"), and Does 1 to 100, alleging causes of action for: (1) breach of implied warranty; (2) breach of express warranty; and (3) violation of the Song Beverly Consumer Warranty Act.

On January 22, 2026, Plaintiff filed a notice of settlement of entire case.

On May 20, 2026, Plaintiff filed a motion for attorney fees and expenses (the "Motion"). On July 10, 2026, Defendant filed an opposition. As of August 3, 2026, no reply has been filed.

II.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in

connection with the commencement and prosecution of such action.

“The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred

– both from the standpoint of time spent and the amount charged.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (“Robertson”) (2006) 144 Cal.App.4th 785, 817, original

italics.) The “prevailing party has the burden

of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Id. at pp. 817-818.)

“The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court.” (Id. at p.

822.)

“[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]” (Robertson,

supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method “requires the trial court to first determine a touchstone or lodestar figure based on a

careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone

figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions

involved and the skill displayed in presenting them; (2) the extent to which

the nature of the litigation precluded other employment by the attorneys; and

(3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id.

at p. 819.) However, a trial court is “not required to apply a

multiplier.” (Id. at p. 822, original italics.)

III.

DISCUSSION

Plaintiff

moves for an order awarding Plaintiff attorneys’ fees and expenses in the sum

of \$19,752.24. (Motion p. 10.) This reflects attorneys’ fees in the sum of

\$16,100.00, an additional \$2,875.00 in attorneys’ fees for preparing the

Motion, reviewing the opposition, preparing a reply, and appearing at the

Motion’s hearing, and \$777.24 in costs. (Motion pp. 2, 10.)

Hourly

Rate:

Plaintiff's

counsel, Lior Sadgan, billed at the rate of \$575.00 per hour. (Sadgan Declaration ¶ 2.)

In

opposition, Defendant argues Plaintiff's counsel's hourly rate is excessive. (Opposition pp. 6-8.)

Plaintiff's

counsel has been practicing law since 2014. (Sadgan Declaration ¶ 3.) The court finds the requested hourly rate is reasonable. (See Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiff's

counsel billed 28.00 hours on this matter, excluding time relating to this Motion. (Sadgan Declaration Ex. B pdf p. 13.)

In

opposition, Defendant argues the court should reduce the fee award to exclude excessive fees and clerical and administrative tasks billed at attorney rates. (Opposition pp. 8-10.)

The

court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack of efficiency in litigating the case and a lack of clarity in tasks performed." (See Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed. This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently."]) Plaintiff's counsel is experienced in this area

of the law. Thus, the court will adjust the reflected time to reflect the court's understanding that the time billed should reflect Plaintiff's counsel's expertise.

Defendant also requests the court eliminate fees requested for clerical tasks including researching applicable laws, drafting repair timelines, creating charts, requesting service of process, filing POS, reviewing a court notice, calendaring hearings, drafting and filing CMS, drafting and filing notice of jury deposit, and drafting and filing NOS. (Opposition p. 10.)

The court disagrees with Defendant that these tasks are purely clerical and declines to strike them.

Date

Task

Hours
Requested

Adjusted
Hours

Hourly
Rate

08/09/24

Drafted
and filed Complaint, Summons, and Civil Case Cover Sheet

2.30

1.0

\$575.00

09/13/26

Reviewed

Defendant's Answer to Complaint

0.60

0.50

\$575.00

05/22/25-05/27/25

Draft

discovery demands

4.0

2.0

\$575.00

(Sadgan

Declaration Ex. B pdf pp. 11-14.)

The

adjustments above reflect a \$1,955.00 reduction in the requested fees.

The

court finds the reasonable number of hours expended on this matter, excluding time spent relating to this Motion, was 24.60 hours, at \$575.00 per hour.

Plaintiff's

counsel also requests \$2,875.00 in fees relating to this Motion. (Motion p. 10.) This reflects 3.0 hours preparing the Motion and an anticipated 2.0 hours of fees to review the opposition, prepare a reply, and attend the hearing. (Sadgan Declaration ¶ 7.)

Plaintiff

filed no reply. Thus, fees relating to reviewing the opposition and preparing a reply are not warranted. The court further finds that 3.0 hours of fees to

prepare the Motion is excessive. The court reduces the fees requested relating to the Motion to \$1,725.00, reflecting 2.0 hours of fees to prepare the Motion and 1.0 hours of fees to appear at the hearing, at \$575.00 per hour.

IV.

COSTS

Plaintiff requests

\$777.24 in costs. (Motion p. 10.)

In opposition,

Defendant argues costs for filing a declaration and fees for personal service are not recoverable because Plaintiff provided no receipts reflecting those costs. (Opposition p. 11.) Defendant also argues costs for "Personal Service" is improper because Code of Civil Procedure section 1033.5 authorizes costs for service of process, "not personal service generally." (Opposition p. 11.)

Plaintiff seeks \$41.18

for costs for "Personal Service" and \$11.76 for "Filing Declaration[.]" (Sadgan Declaration Ex. B pdf p. 14.)

Exhibit B at pdf p. 16

appears to be a receipt for the declaration filing fee. (Sadgan Declaration Ex. B pdf p. 16.) Thus, Defendant appears to be incorrect that Plaintiff has not supported this cost.

The court cannot

locate a receipt for the "Personal Service" cost request. Thus, the court grants Defendant's request and strikes \$41.18.

The court grants

Plaintiff's request for costs in the reduced sum of \$736.06.

V.

CONCLUSION

For the foregoing

reasons, Plaintiff's request for attorneys' fees is granted in the reduced sum of \$15,870.00 and Plaintiff's request for costs is granted in the sum of \$736.06, to be paid by Defendant to Plaintiff's counsel within thirty (30) days

of this order.

Dated: August 6, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court